

Amity University Haryana vs State Of Haryana & Ors on 12 April, 2016

Author: Rakesh Kumar Jain

Bench: Rakesh Kumar Jain

IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CWP No. 24552 of 2013
Date of decision:12.04.2016

Amity University

.....Petitioners

versus

State of Haryana and others

.....Respondents

Coram: Hon'ble Mr.Justice Rakesh Kumar Jain

Present: Mr. Deepak Saini, Advocate
for the petitioner.

Mr. Karanvir Singh Khehar, Advocate
for respondent No. 3.

Rakesh Kumar Jain, J.(Oral)

Counsel for the petitioner has challenged the validity of the Order i.e. Annexure P-14 passed by the State Information Commissioner(for short, 'the Commissioner') on the ground that the petitioner is not the competent authority as defined under Section 2(h) of the Right to Information Act, 2005(for short, 'the Act').

Counsel for the petitioner has submitted that the Commissioner has erred in dealing with the issue and erred in holding the petitioner as a public authority, without referring to the preamble of the Act and Section 2(a) as the petitioner is a private university, self financed, having no control of the Government or any Board or Corporation.

On the other hand, counsel for the respondent has submitted that admittedly, the petitioner is the creation of the Statute namely, the Haryana Act No. 10 of 2010 and thus, is a public 1 of 2 authority in terms of Section 2(h)(c) of the Act. He has further relied upon the judgment of this Court rendered in the case of Chandigarh University, Village Gharuan vs. State of Punjab and others passed in CWP No. 1509 of 2013 decided on 01.03.2013.

I have heard learned counsel for the parties and after examining the available record, am of the considered opinion that the petitioner is a public authority in terms of Section 2 (h)(c) of the Act as held by this Court in the case of Chandigarh University (supra) in which similar issue had cropped up as to whether private university, which is self governed, much less without any fiscal aid of the Government, would fall within the definition of public authority or not. This Court authoritatively held that once the university, may be privately owned, is created under the statute, it would be a public authority in terms of Section 2(h)(c) of the Act.

Since the issue involved in this case is no more res integra, therefore, following the order passed by this Court in the case of Chandigarh University (supra), I hold that there is no error of jurisdiction in passing the order i.e. Annexures P-14. Consequently, the present petition is hereby dismissed.

[Rakesh Kumar Jain] th 12 April, 2016 Judge Shivani Kaushik 2 of 2